

BEFORE THE IOWA BOARD OF CHIROPRACTIC EXAMINERS

|                   |   |                          |
|-------------------|---|--------------------------|
| IN THE MATTER OF: | ) | NO. 96-011               |
| VERNON ADLFINGER, | ) |                          |
| RESPONDENT.       | ) | STIPULATION AND INFORMAL |
|                   | ) | SETTLEMENT AGREEMENT     |

The Iowa Board of Chiropractic Examiners (Board) and Vernon Adlfinger, D.C., (Respondent) enter into the following Stipulation and Informal Settlement Agreement pursuant to Iowa Code sections 17A.10 and 272C.3(4) (1997):

1. Respondent is licensed to practice chiropractic in the state of Iowa and holds license number 04178.
2. Respondent's current address, as reported to the Board, is 3584 North Willow Court, Number 14, Bettendorf, Iowa, 52722.
3. The Board has jurisdiction of the parties and the subject matter.
4. A Notice of Hearing/Statement of Charges in this case was filed on October 31, 1996.
5. Execution of this Stipulation and Informal Settlement Agreement constitutes resolution of this disputed claim. By executing this Stipulation and Informal Settlement Agreement, the Respondent expressly waives the right to any such hearing on the charges contained in the Statement of Charges.
6. Respondent is freely and voluntarily entering into this agreement, and he agrees that the State's counsel may present this agreement to the Board.
7. This Stipulation and Informal Settlement Agreement is subject to approval of the Board. If the Board approves this

agreement, it becomes the final disposition of the matter and the terms of this agreement shall become effective on the date signed by the Board Chair. If the Board fails to approve this agreement, it shall be of no force or effect to either party.

8. This agreement shall be part of the permanent record of the Respondent and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of future violations.

9. This Stipulation and Informal Settlement Agreement and the Statement of Charges are public documents available for inspection and copying in accordance with the requirements of Iowa Code chapter 22 (1997).

10. This settlement shall not be construed as an admission by Respondent of any of the violations alleged in the Notice of Hearing/Statement of Charges. Respondent has agreed to the continuing education requirements of the settlement based on agreement with the Board that the hours of continuing education imposed by this agreement shall also satisfy the continuing education requirements imposed by licensure.

IT IS, THEREFORE, ORDERED: It is the order of the Board that the Respondent shall be required to complete continuing education as set out below and shall comply with the additional terms imposed by this agreement as set out below.

1. Respondent shall complete a total of 100 hours of continuing education in the areas of orthopaedic and neurological testing and shall complete the 100 hours within two years from

the execution of this agreement. The Board shall preapprove the Respondent's 100 hours of continuing education and, upon completion of this 100 hours, the Respondent shall be required to submit proof that he satisfactorily completed the course approved by the Board.

2. Respondent shall complete 100 hours of continuing education in the area of chiropractic consultation and shall complete this 100 hours within two years from the execution of this agreement. The Board shall preapprove the Respondent's 100 hours of chiropractic consultation and shall entertain reasonable requests to adjust both the 100 hours required and the timeframe in which it must be completed. Upon the completion of this continuing education requirement, the Respondent agrees to appear before the Board to: a. discuss the continuing education completed; and b. to review the competency required of a chiropractic consultant.

3. At all times, Respondent shall comply with the administrative rules governing chiropractic consultation and shall be engaged in the active practice of chiropractic. The Respondent is further required to at all times provide an accurate description regarding his practice.

4. Respondent shall be required to accurately describe his membership in the Iowa Chiropractic Society; to accurately describe the diplomate he is pursuing; and shall accurately describe the endorsement activities of the Council on Chiropractic Education.

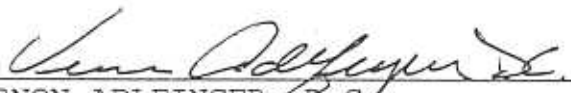
5. The Board reserves the right to review Respondent's compliance with the terms of this agreement at any time.

6. Any violation of the terms of this agreement is grounds for further disciplinary action, upon notice and opportunity for hearing, for failure to comply with an order of the Board, in accordance with Iowa Code section 272C.3(2)(a).

7. This Stipulation and Informal Settlement Agreement shall not be binding as to any new complaints received by the Board.

AGREED AND ACCEPTED:

RESPONDENT

  
VERNON ADLFINGER, D.C.

Dated this 18 day of April, 1997.

IOWA BOARD OF CHIROPRACTIC EXAMINERS

  
MARK KRUSE, D.C., CHAIR

Dated this 14 day of May, 1997.

BEFORE THE IOWA BOARD OF CHIROPRACTIC EXAMINERS

IN THE MATTER OF:

VERNON ADLFINGER,

RESPONDENT.

NO. 96-011

STATEMENT OF CHARGES  
AND NOTICE OF HEARING

TO THE ABOVE-NAMED RESPONDENT:

Pursuant to Iowa Code sections 17A.12 - 17A.18 (1995); and 147.55; 272C.3 and 272C.6 (1995) and rules found at 645 IAC sections 40.24(2)(a)(1), (2) and 40.38 and upon a finding of probable cause by the Iowa Board of Chiropractic Examiners (Board), you are notified that this Statement of Charges is filed against you and a disciplinary hearing is scheduled. The disciplinary hearing will be held on December 11, 1996, at 11:00 a.m. at the Lucas State Office Building, 4th Floor, Conference Room 1, 321 E. 12th St., Des Moines, Iowa, 50319. At that time you may appear and defend. If you fail to appear, the hearing may proceed and a decision will be rendered in your absence. You have the right to be represented by legal counsel at your expense, present evidence on your behalf, and cross-examine witnesses.

The hearing will determine whether discipline should be taken against your license based on the following allegations:

1. That respondent holds a current Iowa license to practice chiropractic and that respondent holds license number 04178.

2. That respondent's address as reported to the Board is 3584 N. Willow Court, #14, Bettendorf, Iowa, 52722.

3. That respondent's clinical practice in chiropractic ceased in May 1993.

4. That in 1996 the respondent was engaged as a chiropractic consultant.

5. That respondent appeared as an expert witness in a district court proceeding in April 1996.

6. That respondent has violated 645 IAC section 40.38.

7. That respondent has violated 645 IAC section 40.24(2)(a)(1) and (2).

8. That respondent has engaged in conduct providing the Board with jurisdiction to take disciplinary action pursuant to Iowa Code section 272C.3 and 645 IAC section 40.22.

The hearing in this matter will be presided over by the Iowa Board of Chiropractic Examiners, which will be assisted by an administrative law judge from the Iowa Department of Inspections and Appeals. Pursuant to 645 IAC section 40.47(g), you are required to file an answer, which conforms to 645 IAC section 40.47(14) within twenty days after you have received this notice of hearing. Pursuant to 645 IAC section 40.47(h), within ten days from the receipt of this notice of hearing, you are required to acknowledge the receipt of this notice of hearing, to state whether or not you will be present at the hearing, to state whether you will require an adjustment of the date and time of the hearing, and you are required to furnish the Board with a list of witnesses you intend to call.

The office of the Iowa Attorney General is responsible for the representation of the public interest in these proceedings. Copies of all filings should be served on counsel at the following address:

Jean M. Davis  
Assistant Attorney General  
Hoover State Office Building  
Des Moines, IA 50319

Dated this 31st day of October, 1996.

Acting on behalf of the  
IOWA BOARD OF CHIROPRACTIC  
EXAMINERS

  
Sharon Dozier, Board Administrator

Copies to:

Jean M. Davis  
Assistant Attorney General  
Hoover Building  
L O C A L

Department of Inspections and Appeals  
Fair Hearings Division  
Lucas Building  
L O C A L